BY ORDER OF THE COMMANDER
42D AIR BASE WING (AETC)

AIR FORCE INSTRUCTION 34-219

MAXWELL AIR FORCE BASE
Supplement

5 JUNE 2020

Services

ALCOHOLIC BEVERAGE PROGRAM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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RELEASABILITY: There are no releasability restrictions on this publication.

OPR: 42 FSS/FSW

Certified by: 42 MSG/CC
(Col Scott A. Bryant)

Supersedes: AFI 34-219_MAXWELLAFBSUP, 30 July 2012

Pages: 4

This supplement implements and extends the guidance in AFI 34-219. It establishes guidance and procedures for the purchase and consumption of alcoholic beverages at Maxwell AFB and Gunter Annex-controlled facilities. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with AFI 33-322, *Records Management and Information Governance Program*, and disposed of in accordance with the Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Refer recommended changes and/or corrections to this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*, through your chain of command. Submit requests for waivers through the Commander, 42d Force Support Squadron, to the Commander, 42d Air Base Wing, for approval. Subordinate units may not issue implementing publications. This publication applies to all persons eligible to purchase or consume alcoholic beverages at Maxwell AFB and Gunter Annex-controlled facilities.

SUMMARY OF CHANGES

This rewrite: Adds locations that may sell and allow consumption of alcoholic beverages and removes closed facilities. Additionally, it places supplemental information in proper chapters based on AFI 34-219 rewrite.

3.3. **Dram Shop Liability.** Under Alabama's Dram Shop Act, anyone who sells or gives liquors or beverages contrary to state law (e.g., serving alcohol to a minor or selling alcohol to a visibly intoxicated person) may be liable for any damages caused by the intoxicated individual. All individuals serving alcoholic beverages are subject to liability claims under this theory. Each responsible person must comply with the intent of the Dram Shop Theory, not only to prevent a claim against the Air Force and themselves, but more importantly, to prevent an unnecessary injury or loss of life.

3.3.1. All individuals involved with the control and serving of alcoholic beverages on base must receive Dram Shop training to be familiar with Air Force drinking policies and will acknowledge the reading and understanding of this supplement. Personnel whose duties include the control and/or serving of alcoholic beverages on a regular basis will receive Dram Shop training annually.

3.3.2. All individuals who receive Dram Shop training will sign the following statement on their *Supervisor's Employee Brief-971*: "I understand my responsibility under the Dram Shop Theory not to sell or serve alcoholic beverages to persons that appear to be intoxicated and not in complete control of their faculties." In addition, the following will be complied with:

3.3.2.1. **(Added)** Anyone selling or serving alcoholic beverages on base must be at least 21 years of age, in compliance with Alabama state law;

3.3.2.2. **(Added)** Packaged beer, wine coolers, and other commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume may be sold for off-club-premises consumption when AAFES facilities are not open.

4.2.1. **(Added)** Authorized locations for sale and consumption of alcoholic beverages:

4.2.1.1. **(Added)** Maxwell and Gunter Bowling Centers;

4.2.1.2. **(Added)** Golf Course Facilities;

4.2.1.3. **(Added)** Ball Field Areas;

4.2.1.4. **(Added)** Squadron Officer School (SOS) Snack Bar (AAFES only);

4.2.1.5. **(Added)** Maxwell Club/Community Center;

4.2.1.6. **(Added)** Flight Line when closed during Air Shows and other special events;

4.2.1.7. **(Added)** Mid Bay Shores Recreation Area;

4.2.1.8. **(Added)** Lake Martin Recreation Area;

4.2.1.9. **(Added)** Clock Tower Lounge (Gunter);

4.2.1.10. **(Added)** Coffee Shops on Maxwell and Gunter;

4.2.1.11. **(Added)** Lodgings desks on Maxwell and Gunter (**NOTE:** Alcohol may be purchased but not consumed at the front desk.);

4.2.1.12. **(Added)** Other areas must be approved in advance by the 42d Air Base Wing Commander.

4.2.2. **(Added)** Authorized locations for consumption of alcoholic beverages:

4.2.2.1. **(Added)** SOS Athletic Area;

4.2.2.2. **(Added)** Military Family Housing;

4.2.2.3. **(Added)** Airmen's Dormitories;

4.2.2.4. **(Added)** Temporary Lodging Facilities;

4.2.2.5. **(Added)** Hopper Lodge;

4.2.2.6. Base Lakes – Picnic/Park Areas;

4.2.2.7. **(Added)** FamCamp Area;

4.2.2.8. **(Added)** Other areas must be approved in advance by the 42d Air Base Wing Commander.

4.2.3. **(Added)** A Dram Shop Liability Waiver (see paragraph 3.3) will be signed by the function POC and all who serve alcohol for all private functions requesting to consume alcoholic beverages at 42d Force Support facilities: Hopper Lodge, Sports Areas, and FamCamp.

5.1. **Off-Premises Alcohol Sales.** Alcoholic beverages may be sold for off premises consumption at these locations and with these conditions:

5.1.1. **(Added)** AAFES Express locations on Maxwell and Gunter;

5.1.2. **(Added)** Officer Training School (OTS) AAFES Express;

5.1.3. **(Added)** Class VI Store (Maxwell).

5.1.4. **(Added)** Alabama state law (§28-1-3.1, Ala Code 1975) allows untaxed alcoholic beverages to be transported off base under the following conditions:

5.1.4.1. **(Added)** Individuals must have proof that beverages were purchased from a military outlet.

5.1.4.2. **(Added)** Beverages must not be stored or possessed in the passenger area of the vehicle or in the view of any passenger.

5.1.4.3. **(Added)** Individuals must purchase the beverages for the own private use and not for resale and in not more than the following quantities:

5.1.4.3.1. **(Added)** Three (3) liters of liquor and one case of beer; or

5.1.4.3.2. **(Added)** Three (3) liters of wine and one case of beer; or

5.1.4.3.3. **(Added)** Two (2) cases of beer.

5.1.4.4. **(Added)** Off-base transportation/possession limits, as authorized by Alabama state law, must be prominently displayed in all AAFES locations selling packaged alcoholic beverages.

5.2.1. Force Support programs may sell beer, wine coolers, and other commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume for off-premises consumption when AAFES is closed and prices are not lower than AAFES.

PATRICK J. CARLEY, Colonel, USAF
Commander, 42d Air Base Wing

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Title 28, Alabama Code of 1975, *Intoxicating Liquor, Malt Beverages and Wine*

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

OTS—Officer Training School

SOS—Squadron Officer School